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Tentative Ruling

Re: **Sweeney v. C.K. Automotive, Inc., et al**
Superior Court Case No. 24CECG05397

Hearing Date: June 11, 2026 (Dept. 501)

Motion: by Plaintiff to Compel Kia America, Inc. to Appear and Testify
at Deposition

**If oral argument is timely requested, it will be entertained on
Thursday, June 18, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To take the motion off calendar due to the moving party's failure to comply with Fresno Superior Court Local Rules, Rule 2.1.17.

Explanation:

Plaintiff Jeffrey Sweeney ("Plaintiff") moves to compel the deposition of Kia America, Inc.'s ("Defendant") Person Most Qualified.

Fresno Superior Court Local Rules, Rule 2.1.17 states in pertinent part:

No motion under sections 2017.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request has either been denied and permission to file the motion is granted via court order or the discovery dispute has not been resolved as a result of the Conference and permission to file the motion is expressly granted.

Plaintiff brings this motion under Code of Civil Procedure section 2025.450. Fresno Superior Court Local Rules, Rule 2.1.17 is clear. Plaintiff did not file a request for a Pretrial Discovery Conference and Plaintiff did not receive permission to file the current motion. Accordingly, Plaintiff's motion to compel Defendant to appear and testify at deposition is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** 6/10/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***In Re: Angel Eduardo Antonio Kuripeth***
Superior Court Case No. 25CECG00038

In Re: Oscar Antonio Garcia
Superior Court Case No. 25CECG00039

In Re: Steven Antonio Kuripeth
Superior Court Case No. 25CECG00040

In Re: Justin Antonio Kuripeth
Superior Court Case No. 25CECG00041

Hearing Date: June 11, 2026 (Dept. 501)

Motion: By Petitioner to Consolidate Cases for All Purposes

**If oral argument is timely requested, it will be entertained on
Thursday, June 18, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To continue the hearing to Wednesday July 15, 2026 at 3:30 p.m. in **Department 403** in order to allow petitioner to file the notice of hearing in Case Nos. 25CECG00039, 25CECG00040, and 25CECG00041. (Cal. Rules of Court, Rule 3.350, subd. (a)(1)(C).) The notices of hearing must be filed no later than June 22, 2026.

Explanation:

Petitioner Soledad Kuripeth Manuel ("Petitioner") on behalf of claimants Angel Antonio-Kuripeth, Oscar Alejandro Antonio Kuripeth, Steven Antonio-Kuripeth, and Justin Antonio-Kuripeth ("Claimants") moves to consolidate Case Nos. 25CECG00038, 25CECG00039, 25CECG00040, and 25CECG00041 with Case No. 25CECG00038 as lead.

Code of Civil Procedure section 1048, subdivision (a), states in pertinent part, "When actions involving a common question of law or fact are pending before the court...it may order all the actions consolidated". Rules of Court, Rule 3.350, subdivision (a)(1), states in pertinent part, "A notice of motion to consolidate must...[b]e filed in each case sought to be consolidated."

Petitioner moves to have Claimants' cases consolidated because Claimants are identically situated and intended to receive identical settlements. On the merits, the court agrees. However, Petitioner failed to comply with Rules of Court, Rule 3.350, subdivision (a)(1)(C), by failing to file a notice of hearing in Case Nos. 25CECG00039, 25CECG00040, and 25CECG00041. Accordingly, the motion to consolidate cases for all

purposes is continued to Wednesday July 15, 2026 at 3:30 p.m. in **Department 403** to allow Petitioner to file the required notices of hearing.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/10/2026.
(Judge's initials) (Date)